

# SENATE . . . . . No. 1208

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Michael O. Moore***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure the responsible use of advanced robotic technologies.

PETITION OF:

NAME:

*Michael O. Moore*

DISTRICT/ADDRESS:

*Second Worcester*

# SENATE . . . . . No. 1208

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By Mr. Moore, a petition (accompanied by bill, Senate, No. 1208) of Michael O. Moore for legislation to ensure the responsible use of advanced robotic technologies. The Judiciary.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 4832 OF 2023-2024.]

## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to ensure the responsible use of advanced robotic technologies.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1 Chapter 140 of the General Laws, as appearing in the 2022 Official Edition, is hereby  
2 amended by inserting after section 131Y the following section:-

3 Section 131Z.

4 (a) As used in this section, the following words shall have the following meanings unless  
5 the context clearly requires otherwise:—

6 “Robotic device,” a device capable of locomotion, navigation, movement or flight that  
7 operates at a distance from its operator or supervisor based on commands or in response to  
8 sensor data, or a combination of both, including but not limited to an uncrewed aerial vehicle.

“Weapon”, any device designed to threaten or cause death, incapacitation or physical injury to a person, including but not limited to firearms, chemical agents or irritants, flamethrowers, kinetic impact projectiles, weaponized lasers and explosive devices.

(b) It shall be unlawful for any person, whether or not acting under color of law, to manufacture, modify, sell, transfer, possess or operate a robotic device equipped or mounted with a weapon. Whoever knowingly violates the provisions of this subsection shall be punished by imprisonment in the state prison for not less than 2½ years nor more than 5 years, or in a house of correction for not less than 18 months nor more than 2 ½ years. Whoever, after having been convicted of any of the offenses set forth in this subsection, commits a second or subsequent offense set forth in this subsection, shall be punished by imprisonment in the state prison for not less than 5 years nor more than 7 years; for a third such offense, by imprisonment in the state prison for not less than 7 years nor more than 10 years; and for a fourth such offense, by imprisonment in the state prison for not less than 10 years nor more than 15 years.

(c) It shall be unlawful for any person, whether or not acting under color of law, to use a robotic device to: (A) threaten to commit a crime in violation of section 2 of chapter 275; (B) criminally harass another person in violation of section 43A of chapter 265; or (C) physically restrain or to attempt to physically restrain another person. Whoever knowingly violates the provisions of this subsection shall be punished by imprisonment in a house of correction for not more than 2½ years, by a fine of not more than \$1,000 or by both such fine and imprisonment. Whoever, after having been convicted of any of the offenses set forth in this subsection, commits a second or subsequent offense set forth in this subsection, shall be punished by imprisonment in a house of correction for not more than 2½ years or in a state prison for not more than 10 years, by a fine of not more than \$15,000 or by both such fine and imprisonment.

(d) This section shall not apply to:

(i) the United States Department of Defense, or any of its departments, agencies or units, and the Massachusetts National Guard;

(ii) a defense industrial company with respect to robotic devices that are within the scope of its contract with the department of defense;

(iii) a defense industrial company with respect to robotic devices that are within the scope of its waiver obtained from the attorney general;

(iv) robotic devices within the scope of a waiver obtained from the attorney general solely for the development or testing of technology intended to detect, prevent or mitigate the unauthorized weaponization of robotic devices; or

(v) robotic devices within the scope of a waiver obtained from the attorney general solely for educational or entertainment purposes.

(e) It shall not be a violation of this section for law enforcement agencies or officers, as those terms are defined in section 1 of chapter 6E, acting in the public performance of their duties to operate a robotic device equipped or mounted with a weapon or disrupter technology:

(i) to destroy, defuse or dispose of explosives or suspected explosives; (ii) for the destruction of property when there is an imminent threat of death or serious bodily injury; or (iii) for development, evaluation, testing, education or training relating to the uses permitted in (ii) and (iii) of this subsection.

(f) A law enforcement agency shall be required to obtain a warrant, or other legally required judicial authorization, prior to deploying a robotic device: (i) onto private property in

any situation in which a warrant would be required if the entry onto that property were made by an officer; and (ii) to conduct surveillance or location tracking in any situation in which a warrant or other legally required judicial authorization would be required if such surveillance or tracking were conducted by an officer or other technology.

(g) Any individual may bring a civil action for damages and equitable relief, including injunctive relief, resulting from a violation of this section or a regulation promulgated under this section in any court of competent jurisdiction. A plaintiff who prevails in an action under this section shall be entitled to an award of reasonable attorneys' fees and costs incurred in connection with said action.

(h) Each law enforcement agency shall document, as a public record, each time it uses a robotic device quarterly to the executive office of public safety and security. Reported information shall include: the date and time of the use; the scope, target and objective of the use; whether the robotic device was equipped or mounted with a weapon; the permitted reason for use; and whether a warrant or other legally required judicial authorization was obtained. The executive office of public safety and security shall annually, not later than March 31, publicly report this information on its website.

(i) The secretary of the executive office of public safety may promulgate rules and regulations to carry out the provisions of this section, including rules and regulations related to the permitted uses of robotic devices equipped or mounted with a weapon by law enforcement set forth in subsection (e).

(j) The attorney general shall promulgate rules and regulations relating to the waivers described in subsection (d).